

COLLECTION · SELLERS

# Selling during a separation

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*Separation or divorce — selling the property with clarity and calm*

READ BEFORE YOU BEGIN

## Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

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# Selling during a separation

*Separation or divorce — selling the property with clarity and calm*

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Selling the house during a separation or divorce adds an emotional and legal layer to an already demanding transaction. With a clear framework and the right professionals, you can get through it fairly and calmly.

This guide maps out the key points: the property's legal status depending on your situation, the decisions to make together, splitting the sale proceeds, and the role of a neutral broker.

Informational content, not legal advice: rely on a notary or a lawyer. Each chapter ends with a lined “My notes” page.

Selling during a separation adds an emotional load to an already demanding process. This guide helps you stay on course: understanding the property's status, choosing between selling, buying out or waiting, setting the price together, splitting the proceeds and staying functional despite the conflict.

The through-line: structure and delegate so that emotion doesn't cost money.

## CHAPTER

# Understanding the property's status

*Knowing who owns what depending on your situation.*

Your rights to the property depend on your situation: married (with the family patrimony rules), in a civil union, or common-law partners (whose rights differ depending on whether they are co-owners on title or not). This is a crucial and often misunderstood point.

- Married / in a civil union: the family residence is governed by specific rules.
- Common-law partners: rights largely depend on who is listed on title.
- A legal opinion clarifies your exact situation.

Your rights to the property depend on your status: married/in a civil union (family patrimony), or common-law (the written agreement and the title prevail). Clarifying who owns what is the first step — it drives the split and the decisions to come.

### EMILIE'S TIP

*Never assume your rights to the house without a legal opinion, especially in a common-law union. Clarifying the status from the start avoids painful conflicts and blockages later.*

## CHAPTER

# Deciding: sell, buy out or wait

*Choosing the option that suits both parties.*

- Sell and split the proceeds: often the cleanest solution.
- One buys out the other's share: possible if the buyout is financeable (borrowing capacity, net equity).
- Wait (e.g. until a specific moment): sometimes chosen, but to be framed by a written agreement.

Each option has financial, tax and practical implications. A clear decision, put in writing, avoids misunderstandings.

Three options: sell and split (often the most neutral), one partner buys out the other's share, or wait (rarely ideal). The right choice depends on your means, the feasibility of the buyout and your need to turn the page. Decide together, in writing if possible.

### EMILIE'S TIP

*Decide on the option and put it in writing, ideally with your advisors. A clear agreement on “who does what and when” hugely reduces the tensions of the process.*

## CHAPTER

# Setting the price and managing the sale together

*Selling effectively despite the context.*

Like any sale, you start from a comparative analysis to set a fair price. The difficulty is more human: two people have to agree on the price, the visits, and which offers to accept.

- Rely on neutral facts (CMA) to depersonalize the price.
- Define in advance how decisions (offers) will be made.
- Keep the property presentable despite the context.

Like any sale, you start from a comparative analysis to set a fair price and you prepare the property. The difficulty is coordinating as two in a tense context: entrust the logistics and communication to a neutral broker so that each decision doesn't become a confrontation.

### EMILIE'S TIP

*Entrust the sale to a neutral broker who speaks to both parties as equals. A professional intermediary reduces friction and keeps the transaction on the rails.*

## CHAPTER

# Splitting the sale proceeds

*Clarifying the split and the financial aspects.*

The split of the net proceeds (after repaying the mortgage and the fees) depends on your legal situation and your agreements. The notary can handle the distribution at closing according to the agreed instructions.

Also anticipate your needs for what comes next: each of you will probably have to find new housing. Understanding your post-sale purchasing or renting capacity is part of an informed decision.

The split of the net proceeds (after repaying the mortgage and the fees) depends on your status and your agreements. Clarify it in advance and, if needed, have it legally framed: an unclear split is a major source of last-minute conflicts.

### EMILIE'S TIP

*Have it specified in writing, before closing, how the net proceeds will be split. The notary will follow those instructions; improvising it on signing day is a guaranteed source of conflict.*

## CHAPTER

# Staying functional: support and communication

*Selling calmly despite the conflict.*

Selling during a separation adds an emotional dimension to an already demanding process. A few markers help you stay on course:

- Agree on the **key decisions** (price, deadlines) in advance, in writing if possible.
- Go through **neutral intermediaries** (broker, mediator) to defuse things.
- Separate the **financial issues** from personal tensions.
- Get support (notary, legal advisor).

The goal: a transaction that closes cleanly, without the conflict costing both parties money.

Staying functional despite the conflict protects your money: agree on the key decisions in advance, go through neutral intermediaries and separate the financial issues from personal tensions. A broker as the single channel of communication defuses a lot of tension.

### EMILIE'S TIP

*Entrusting the sale to a neutral broker avoids many direct confrontations. They become the single channel of communication about the transaction, which protects the sale — and often your energy.*



## IN PRACTICE

# Action plan

*Your next steps, concretely.*

### **This week**

1. Get a legal opinion on my rights according to my status.
2. Clarify who is on title and the property's net equity.

### **Within 30 days**

1. Decide (sell, buy out, wait) and put the agreement in writing.
2. Set a price by CMA and agree on how offer decisions will be made.

### **Next**

1. Entrust the sale to a neutral broker and prepare the split of the proceeds.

### **To move forward**

1. Clarify the property's status and the method of splitting.
2. Entrust the sale to a neutral broker serving as the channel of communication.

## REFERENCES

# Resources & glossary

- Family patrimony: rules governing the residence of married/civil-union couples.
  - Common-law partners: rights largely depending on registration on title.
  - Net proceeds: the amount after repaying the mortgage and the fees.
  - Share buyout: an option where one partner buys out the other's share.
  - Neutral broker: an intermediary who facilitates the sale between the parties.
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- Family patrimony: protections for married/civil-union couples.
  - Common-law partners: no automatic protections; the title and the written agreement prevail.
  - Share buyout: one partner buys the other's share to keep the property.
  - Net proceeds: the sum remaining after mortgage and fees, to be split.
  - Mediation: neutral support to facilitate decisions.

## GOING FURTHER

# Quiz — test your knowledge

### 1. Rights to the house depend first on:

- A) The colour of the walls
- B) Your status (married, civil union, common-law)
- C) The notary
- D) The buyer

### 2. For common-law partners, rights often depend on:

- A) Nothing
- B) Who is listed on title
- C) Age
- D) The city

### 3. An often cleanest solution is:

- A) Waiting indefinitely
- B) Selling and splitting the proceeds
- C) Deciding nothing
- D) Demolishing the house

### 4. A buyout by one of the partners is possible if:

- A) Never possible
- B) The buyout is financeable (capacity, net equity)
- C) Forbidden
- D) Free

### 5. To depersonalize the price, you rely on:

- A) Emotions
- B) The comparative analysis (CMA)
- C) Chance
- D) The municipal assessment alone

**6. A neutral broker:**

- A) Worsens conflicts
- B) Reduces friction between the parties
- C) Chooses for you
- D) Is useless

**7. The split of the net proceeds must be:**

- A) Improvised at the notary
- B) Specified in writing before closing
- C) Decided by the buyer
- D) Ignored

**8. Before assuming your rights, you must:**

- A) Guess
- B) Get a legal opinion
- C) Ask the neighbour
- D) Nothing

**Answer key**

- 1. **B** — Status changes the rules (ch. 1).
- 2. **B** — The title is decisive (ch. 1).
- 3. **B** — Selling and splitting brings clarity (ch. 2).
- 4. **B** — You have to be able to finance the buyout (ch. 2).
- 5. **B** — Neutral facts (ch. 3).
- 6. **B** — They speak to both as equals (ch. 3).
- 7. **B** — The notary follows the agreed instructions (ch. 4).
- 8. **B** — Especially in a common-law union (ch. 1).

# Signé PAR Em

*Thank you for reading. May this guide help you  
decide with confidence, with all the information  
in hand.*

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